



File No.: EXP202311888

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 10, 2023, a complaint was received by this Agency from Mr. A.A.A. (hereinafter, the complainant) against CAIXABANK, S.A. (hereinafter, the complained party) for not having adequately addressed his right to rectification.

The complainant states that he receives calls and messages to his phone number from CAIXABANK, S.A. to collect a debt from a third party, which he informs the entity about, receiving a response indicating that, to provide more information, he should submit a copy of the invoice or contract in his name related to the phone number subject to verification and his ID, and after sending this information, they inform him that they have no record of the provided data being associated with any customer. He therefore provides another phone number, receiving the following response, with which he disagrees: "In this regard, we inform you that we have verified in our systems that the phone number you refer to in your request (**PHONE.1) is recorded as a contact number by another customer. To modify this data, it is necessary, for security and verification reasons, that you visit any of our offices open to the public, where a manager will attend to your request."

He provides a screenshot of the calls and emails received.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The complained party summarizes the same facts as the complainant and adds that "(...) Once the documentation provided by the Complainant was reviewed, and confirmed with the CaixaBank customer assigned the phone number that is the subject of this complaint, the link of the phone ***PHONE.1 referred to by the Complainant has been removed from CaixaBank's database, thus ensuring that no calls or messages directed to another CaixaBank customer are received."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on October 10, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data decided to admit the complaint for processing since it was not evidenced that a response had been provided to the complainant, in accordance with Article 12.4 of the LOPDGDD.

The aforementioned agreement granted the complained party a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate, indicating, in summary, that on November 14, 2023, it sent an email to the complainant, "(...) informing him of the deletion of the phone data referred to by the complainant from CaixaBank's database."

FOURTH: After examining the document submitted by the complained party, it was forwarded to the complainant, so that, within ten working days, he could submit any allegations he deemed appropriate, but no allegations were made within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them,

by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this role the function of cooperating with that authority.

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In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim for the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the party being complained about for analysis, to respond to this Agency within one month, and to provide proof of having given the claimant the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on October 10, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the submitted claim was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim to be accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the data controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons in case they do not intend to attend to such request. The

burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to rectification

Article 16 of the GDPR, which regulates the right to rectify inaccurate personal data, establishes the following:

"The data subject shall have the right to obtain from the data controller without undue delay the rectification of inaccurate personal data concerning them. Taking into account the purposes of the processing, the data subject shall have the right to have incomplete personal data completed, including by means of a supplementary statement."

V

Conclusion

In the case analyzed here, from the examination of the documentation provided, it has been established that the complaining party exercised their right to rectification and that, after the period established in the aforementioned regulations, their right was not duly attended to.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in cases where there are no data of the data subject in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the data controller to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the claim that gives rise to this procedure, made precisely due to the lack of an adequate response to the request for the exercise of rights, the party being complained about has provided documentation proving the communication sent to the data subject addressing the requested right to rectification. This response, therefore, occurs after the established deadline.

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In this regard, it should be specified that the response that corresponds to be made cannot be expressed in the course of a mere administrative procedure. Therefore, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information contained in the file with the regulations referred to in the preceding sections, it is appropriate to formally uphold the present complaint due to the response being issued late, without requiring additional actions by the data controller in order to issue a new certification regarding the exercise of the right.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Mr. A.A.A. against CAIXABANK, S.A.

However, the issuance of a new certification by the responding party is not warranted, as the response was issued late, without requiring additional actions by the data controller.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to CAIXABANK, S.A. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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